

26STCV05329 26STCV05329

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Case Number: 26STCV05329 Hearing Date: June 30, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 30, 2026

Case Name: Luburic v. Ralph Lauren Retail, Inc., et al.

Case No.: 26STCV05329

Matter: Motion to Compel Arbitration

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an employment matter.

Defendant Ralph Lauren Retail, Inc seeks to compel arbitration of this matter.

"[O]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc. § 1281.2; see also EFund Capital Partners v. Pless (2007) 150 Cal.App.4th 1311, 1320 [the language in section 1281.2 compelling arbitration is mandatory].) The right to compel arbitration exists unless the court finds that the right has been waived by a

party's conduct, other grounds exist for revocation of the agreement, or where a pending court action arising out of the same transaction creates the possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc. § 1281.2(a)-(c).)

"On a petition to compel arbitration, the trial court must first determine whether an agreement to arbitrate the controversy exists. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature." (Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541.) The party seeking to compel arbitration must also "plead and prove a prior demand for arbitration and a refusal to arbitrate under the agreement." (Mansouri v. Superior Court (2010) 181 Cal.App.4th 633, 640-641.)

Plaintiff argues the agreement is unconscionable.

" '[U]nconscionability has both a "procedural" and a "substantive" element,' the former focusing on ' "oppression" ' or ' "surprise" ' due to unequal bargaining power, the latter on ' "overly harsh" ' or ' "one-sided" ' results. [Citation.] 'The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.' [Citation.] But they need not be present in the same degree.... [T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (Armendariz v. Found. Health Psychcare Servs., Inc. (2000) 24 Cal.4th 83, 114.)

Considering the agreement is an adhesion contract, the Court finds the following provisions unconscionable: (a) one-sided injunctive relief in court for Defendant; (b) unjustified requirement of "strict confidence" for all filings; (c) the requirement that alters PAGA standing: "you may pursue claims and seek remedies as a representative of the California Labor & Workforce Development Agency, but only based on alleged violations of law personally suffered by you"; and (d) the requirement that is clearly inimical to EFAA: "if you wish to bring other claims against the Company in addition to a Sex Harassment claim [], then all such claims, including the Sex Harassment claim, and, if applicable, the aforementioned retaliation claim, must be brought in arbitration pursuant to this Agreement."

It is irrelevant that Plaintiff does not assert a sexual harassment claim. Indeed, "we must analyze the circumstances as they existed 'at the time [the contract] was made' to determine if gross unfairness was apparent at that time." (Am. Software, Inc. v. Ali (1996) 46 Cal.App.4th 1386, 1392.)

The agreement is entrenched and permeated with unconscionable terms that cannot and should not be severed.

Because the agreement is unconscionable and invalid, the Motion to Compel Arbitration is denied.

Moving party to give notice.